



Tort Law (9th edn)

Kirsty Horsey and Erika Rackley

p. 287 10. Defences to negligence

Kirsty Horsey and Erika Rackley

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Abstract

This chapter discusses three key defences in the tort of negligence: voluntary assumption of risk (consent or *volenti non fit injuria*), contributory negligence and illegality. The defence of voluntary assumption of risk is based on the common-sense notion that ‘one who has invited or assented to an act being done towards him cannot, when he suffers it, complain of it as a wrong’. The defence of illegality denies recovery to certain claimants injured while committing unlawful activities. Contributory negligence is a defence that operates not to defeat the claimant’s claim entirely but rather to reduce the amount of damages the defendant must pay.

Keywords: defences, tort law, consent, illegality, contributory negligence

Problem question

Read this problem question carefully and keep it in mind while you are working through the chapter that follows. At the end of the chapter you will be able to apply what you have learnt to the problem question and advise the relevant parties.

Ben, Viê’t and Orik are old school friends. Every year they go camping together in Snowdonia National Park. After they arrive on the Friday night, they decide to go to the pub, where Ben and Viê’t spend several hours reminiscing, and by the time they leave they are both over the legal driving limit. Orik has not been drinking. On their way back to the campsite they pass a farm and notice a tractor with its keys in the ignition. Viê’t gets in and starts the engine. Ben and Orik quickly jump in beside her. None of them wear a seat belt. At first, Viê’t drives slowly around the farmyard but when Ben says ‘Is that the best you can do?’ she decides to go ‘off-road’ and drives it into a field. Unfortunately, on the rough

ground Viêt loses control of the tractor and it overturns. Ben and Orík are thrown out onto the field. Ben is seriously injured. Though Orík escapes with only minor physical injuries, he later develops post-traumatic stress disorder (PTSD) as a result of the incident. One day while walking home from work Orík ‘snaps’, lashing out at an innocent passer-by and causing them serious injury. Though it is recognised that his actions were as a result of his PTSD, he is jailed for six months and loses his job.

Advise the parties (you should assume that, in the absence of applicable defences, Ben and Orík would have a good claim in negligence).

10.1 Introduction

Consider the following examples:

- *A cycle-courier is knocked down and seriously injured as she swerves to avoid a pedestrian crossing the road. She is not wearing a cycle helmet.*
- *A footballer is seriously injured by a late, high tackle in the closing minutes of a crucial cup tie.*
- *A driving instructor suffers a serious knee injury when the student to whom she is giving driving lessons crashes into a lamp post.*

p. 288 ↵ In all these scenarios, even if all the other elements of a claim in negligence—that is, duty, breach and causation—have been met, the defendant may be able to raise a defence. In so doing, what the defendant is effectively saying is ‘though I did carelessly injure the claimant, there is nonetheless a good reason why the law should not hold me responsible’. The defendant might, for example, argue that the claimant was (at least in part) to blame for their injuries or that they had accepted the risk of them occurring. Alternatively, they may suggest that an award of damages would be inappropriate on the basis that the claimant was injured while they were engaged in an illegal, or inherently risky, activity. Where a defendant is able to successfully raise a defence, it may work to defeat the claim entirely or merely reduce the amount of damages payable.

This chapter considers three key defences in the tort of negligence:¹ *voluntarily assuming the risk* (*volenti non fit injuria*),² *contributory negligence* and *illegality*. While *contributory negligence* is (as the name suggests) confined to claims in negligence,³ *volenti* and *illegality* are general defences and, as such, are applicable throughout tort law.⁴

10.2 Voluntarily assuming the risk (*volenti*)

The defence of *volenti* is based on the common-sense notion that ‘one who has invited or assented to an act being done towards him cannot, when he suffers it, complain of it as a wrong’ (Lord Herschell, *Smith v Baker* [1891] at 360).⁵ This idea is encapsulated in, and often referred to using, the Latin maxim *volenti non fit injuria* (literally: ‘no wrong will be done to the willing’), sometimes abbreviated to *volenti*. It is a complete defence. This means that where it is made out it will defeat the claim and no damages will be payable. However, the defence is not without controversy. As DM Gordon notes: ‘Few branches of English case law are as confused and inconsistent as the decisions on a man’s right to complain of physical injury after he has knowingly incurred danger’.⁶ In 1996 Stephen Sugarman suggested that *volenti* is ‘both redundant and confusing’.⁷ More recently Jodi Gardner has called for its abolition, arguing it is ‘not fit for modern tort law’—not least because it is rarely raised, and even more rarely raised successfully.⁸ She concludes:

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In *Lane v Holloway* [in 1968] Salmon LJ commented that whilst *volenti* could be justified academically, on a practical level it was ‘quite absurd’. The limitations of the defence have now gone beyond Salmon’s LJ’s biting comments; it is both intellectually unjustified and practically absurd. Our living common law can (and should) move with ‘modern societal expectations’. It should do so here and put an end to this defence once and for all.⁹

The defence of *volenti* can arise in two different ways. First, the defence applies where the claimant consents to the specific harm caused by the defendant and (sometimes) where they have consented to the risk of that harm. For instance, if I agree to you hurting me or damaging my property—say I invite you to punch me in the stomach or to tear up my textbook—you will have a defence to any tort claim I may bring against you. Similarly, if I willingly put myself into a dangerous situation—for instance, I agree to stand with an apple on my head while you attempt to knock it off by firing arrows at it—my claim for any injuries I then suffer may well be defeated on the basis that I voluntarily undertook the risk of such injuries. In the context of negligence claims, this involves consenting to not simply the risk of harm but the risk of being harmed by the defendant’s negligence.¹⁰

Secondly, the defence will apply where the claimant consents (or, at least, is *to be treated as* consenting) to the defendant excluding their liability for any injuries they may cause (though here the defence may be restricted by the provisions of the Unfair Contract Terms Act 1977). This version of the defence is best exemplified in cases of occupiers’ liability. As we shall see, in **Chapter 11**, occupiers owe a duty of care to those they allow onto their premises. However, an occupier who is keen to avoid liability may put up a notice saying that visitors ‘enter at their own risk’ or, more straightforwardly, that they ‘exclude liability for any injuries visitors may suffer on the premises’. If a visitor sees such a notice and enters the premises nonetheless—or indeed even if they do not see it but the occupier is held to have taken ‘reasonable steps’ to bring it to the visitor’s attention—their claim for any injuries they then suffer will be defeated (see Occupiers’ Liability Act 1957, s 2(1)).¹¹

Although both forms of the defence are based on the consent of the claimant, the difference between them is that in each case the claimant is consenting to something different. In the first case, the claimant is consenting to the specific factual harms which they suffer and/or the risks to which they are exposed—for example, a punch in the stomach or being hit by an arrow. By contrast, in the second case, the claimant's consent is not to any particular factual harm or danger but rather to the defendant's exclusion or waiver of liability. Here the claimant is saying not 'I accept that what I am doing is dangerous' but rather 'I accept that I cannot sue you if I end up injured'.

p. 290 This difference between the two versions of the defence is reflected in how the defence is proved. You can only (meaningfully) consent to something if you know about it (though, as we shall see, the defence of *volenti* requires something more than just knowledge). However, ↵ because the two versions of the defence involve consent to different things, each requires a different type of knowledge. With the first version (where the claimant consents to the specific factual harm caused or the risk run) the defendant must show that the claimant did indeed consent to the harm which in turn requires that they were aware of the risk of that injury. By contrast, the second version of the defence can be made out even where the claimant has no idea that they are in a dangerous situation and has not given any thought at all to the possibility of their being injured. Rather, since the defence is based on their consent to the defendant excluding liability, the question is whether they knew (or should have known) that the defendant was indeed intending to exclude liability for injuries the claimant may suffer.

Because of this, although the two versions of the defences were described by Buckley LJ in *White v Blackmore* [1972] as 'somewhat analogous' (at 668), they do not always run together. In this case, the claimant's husband was fatally injured while watching a motor race. At the time of his injury, he was standing with his family behind the spectators' ropes some way from the track. A car's wheel became tangled up in the safety rope which set in motion a chain of events which culminated in the claimant being thrown into the air. The Court of Appeal held that, because the victim did not have full knowledge of the factual risks he was running, the first version of the defence could not succeed:

It might not have been at all obvious to the deceased that he was standing in a particularly dangerous place when the accident occurred. Accepting this I do not think it can be said ... that the deceased had full knowledge of the risk he was running. (at 668)

However, the court held that the second version of the defence was available, since the defendants had taken reasonable steps to inform the victim that they were seeking to exclude liability. The various warnings were 'sufficient to exclude any duty of care on the part of the organisers ... towards the deceased, the defendants were not guilty of negligence and consequently they do not need the shield of the doctrine of *volenti*' (at 668).

We shall look at the second version of the defence in greater detail in **Chapter 11**, when we deal with occupiers' liability. For now we shall focus on the first version of the defence.

10.2.1 Establishing the defence

In order for the defence to be established the defendant must show that the claimant either agreed to, or voluntarily took the risk of, the harm that materialised. While cases where the claimant has consented to the harm or tortious action—for example, a battery by agreeing to surgery or to give blood—are (usually) relatively straightforward,¹² those where the agreement is to the *risk* of such harm are more tricky. In such cases, it is necessary to show that the claimant at the material time:

- (1) knew the nature and extent of the risk of harm; and
- (2) voluntarily agreed to it (*Morris v Murray* [1991] at 18).

The test is a subjective one; it is not enough that a reasonable person might have been aware of the risk—the claimant must know and, importantly, agree to it. It is well established that awareness or knowledge of the risk is not enough: ‘A complete knowledge of the danger is in any event necessary, but such knowledge does not necessarily import consent’ (*Dann v Hamilton* [1939] at 515).

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***Dann v Hamilton* [1939] 1 KBD 509 (KBD)**

The claimant, Dann, was injured in a car accident. It was clear that the accident was the result of the negligent driving of the defendant, Hamilton, who had been drinking. Dann brought a claim for damages against Hamilton’s estate (he had been killed outright at the scene). The question for the court was whether the claimant had voluntarily assumed the risk of *the defendant’s negligence*.

The court found that the following exchange had taken place when another passenger was leaving the car the claimant was travelling in: ‘You two [referring to the claimant and her mother, who was also in the car] have more pluck than I have’, to which the claimant answered ‘You should be like me. If anything is going to happen, it will happen’ (at 514). Nevertheless Asquith J held that, though the claimant was aware that the defendant had been drinking and that this would materially reduce his ability to drive safely, she had not consented to, or absolved him from liability for, any negligence on his part that might cause her harm. Simply knowing the risk is not enough; the claimant must accept it.

IMPORTANT NOTE: the application of *volenti* in relation to passengers in road traffic accidents is now excluded by section 149 of the Road Traffic Act 1988.¹³

While it is clear that the claimant must be shown to have consented to (rather than simply having been aware of) the risk of injury, what is less clear is what exactly this requires. Lord Denning MR in *Nettleship v Weston* [1971] took a very formalistic approach: ‘knowledge of the risk of injury is not enough. Nor is a willingness to take the risk of injury. Nothing will suffice short of an agreement to waive a claim for negligence’ (at 701). This view was approved by the House of Lords in *Reeves v Commissioner of Police for the Metropolis* [2000].¹⁴ However, other cases appear to be less demanding.

***Morris v Murray* [1991] 2 QB 6 (CA)**

After spending an afternoon drinking, during which the defendant had consumed the equivalent of over half a bottle of whisky, he and the claimant decided to take the defendant's light airplane for a spin. The claimant drove to the airfield and helped to prepare the plane for take-off. Shortly after take-off the plane crashed, killing the defendant and seriously injuring the claimant. The defendant's estate met the claimant's claim for compensation with the defence that he had either voluntarily assumed the risk of injury or was contributorily negligent.

The Court of Appeal held that Morris had voluntarily assumed the risk of injury. He was not so drunk as to be unable to appreciate the extent and the nature of the risks involved and had willingly embarked upon the flight knowing that Murray was so drunk that he was very likely to be negligent.¹⁵

p. 292 ↩ The claimant must have consented to the risk of the injury caused in the way it occurred, which in the context of negligence includes the defendant causing that injury by failing to take reasonable care. So, while Morris may have consented to the risk of injury that was likely to follow from embarking on a flight with a drunken (and therefore likely to be negligent) pilot, if the defendant had instead been harbouring a long-term grudge against the claimant and decided to use the opportunity to teach him a lesson, it seems clear that Morris's consent to the negligent consequences of the drunken adventure would not have provided a defence (*Slater v Clay Cross Ltd* [1956]).

Morris shares a number of parallels with *Dann*. In both cases, the claimant agreed to take a ride in a vehicle being driven by a defendant who had been drinking heavily, with full knowledge of the risks this involved. In both cases, the vehicle crashed, the driver was killed and the claimant was badly injured. Yet in *Dann* the claim succeeded, while in *Morris* the defence of *volenti* was made out. Though the Court of Appeal in *Morris* sought to distinguish *Dann* on the basis that there the claimant was a reluctant passenger who felt unable to extricate herself from the drunken drive, this does not seem to have been the basis for the court's rejection of the defence in that case.

More fundamentally, *Morris* brings out the difficulty in identifying what is meant by consent. It is clear that the claimant knew that he was taking a great risk but, as cases such as *Dann* and *Nettleship*¹⁶ stress, knowledge of—or willingness to take—a risk is not the same as consent. But if something more is needed, what is it? Certainly the claimant in *Morris* did not *want* to be injured, though he did willingly engage in a course of conduct which might lead to that result. It is hard to resist the conclusion that, sometimes—where the risk run is particularly great or the activities of the claimant particularly irresponsible—the courts do treat knowledge as tantamount to consent.

Counterpoint

Voluntarily accepting the risk only goes so far. Take people voluntarily engaging in dangerous sports activities, for example. Here, though the potential claimant is not courting injury—in fact they wish to avoid it—they know it might happen. The courts have held that, by willingly engaging in such activities, the claimant voluntarily assumes the risks inherent in the relevant sport (dependent on the level at which the sport is being played). That said, it is unlikely that their consent would be seen as extending to injuries or risks which are not part and parcel of the game. So, while a footballer would be regarded as consenting to being tackled, even fouled, and any injuries so caused, their consent would not extend to serious foul play, such as a dangerously high and/or late tackle (*Condon v Basi* [1985]).¹⁷

In order to establish a defence based on the claimant's voluntary assumption of the risk, the claimant needs to have done more than simply put themselves in a dangerous situation. As Lord Halsbury LC pointed out in *Smith v Baker & Sons* [1891], anyone crossing a London street knows that a substantial percentage of drivers are negligent. If a man crosses deliberately, with that knowledge, and is negligently run down, he is certainly not consenting to the risk of injury, and so ↵ without a remedy (at 337).¹⁸ Similarly, it might be argued that a young man walking home alone late at night knows that they run a greater risk of being attacked than if they take an Uber.¹⁹ However, no one would argue that they have voluntarily assumed the risk of any injury they may suffer.

This seems straightforward enough. But things become less clear if we compare these examples with *Morris*. As we have seen, there the claimant knowingly and willingly engaged in an inherently dangerous activity. When he was then injured, the court held that he had voluntarily assumed that risk. Yet the same appears also to be true in the earlier examples. The man who crosses the road knows there is the risk of being run over but crosses the road anyway. The man knows there is a danger of being attacked but walks home late at night nonetheless. Of course, neither *wants* to be injured, but nor did the claimant in *Morris*.

One possible distinction between these cases lies in the likelihood of the risk eventuating. So, the chances of the plane crashing in *Morris* were greater than the likelihood of being run over crossing the road or of being attacked late at night. But should this be enough? It is unlikely that the man's claim would be defeated by his voluntary decision to walk home however great the likelihood of him being attacked. And rightly so. Perhaps what distinguishes them is an element of culpability. The claimant in *Morris* was factually and morally responsible for his injury, whereas few would argue that a man crossing a road or walking home alone late at night is (wholly) responsible for his injuries.

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Pause for reflection

In *Morris* Fox LJ described the facts of the case as ‘a drunken escapade, heavily fraught with danger’ (at 12) and said that ‘the wild irresponsibility of the venture is such that the law should not intervene to award damages and should leave the loss where it falls’ (at 17). In a similar vein, more recently, May LJ noted that ‘[a]dults who chose to engage in physical activities which obviously give rise to a degree of unavoidable risk may find that they have no means of recompense if the risk materialises so that they are injured’ (*Poppleton v Trustees of the Portsmouth Youth Activities Committee* [2008] at [1]).²⁰

This reflects what Peter Cane and James Goudkamp describe as an increasing emphasis on self-reliance and ‘personal responsibility’ by the courts.²¹ Even if we accept that the courts are right to stress that individuals must take responsibility for their own actions, and that the law of torts should limit the protection it offers to those who have little regard for their own safety, should the law leave those who are injured when acting irresponsibly without *any* legal claim?

A better response would be to use the *partial* defence of contributory negligence, discussed in **section 10.4**, since it is designed to deal with just this problem and allows the court to reduce a claimant’s damages in line with their own fault while not depriving them of all compensation.

Test your understanding by trying this section’s self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-10-2>>.

p. 294 10.3 Illegality

The defence of illegality denies recovery to certain claimants injured while committing unlawful activities. Like *volenti*, it is a complete defence. It is typically seen to invoke a special rule of public policy. Lord Hoffmann in *Gray v Thames Trains* [2009] identified two formulations of the illegality defence. At its most narrow, the defence ensures that a claimant cannot recover in civil law for the consequences of a criminal sanction imposed as a result of one’s own unlawful act (at [29]). If the law imposes a harm or loss (e.g. imprisonment or a fine) on someone as punishment for their wrongdoing, they cannot seek compensation for that loss by bringing an action in tort against a defendant they claim caused them to commit the wrong. After all, as Lord Hoffmann commented in *Gray*, ‘Tort law has enough on its plate without having to play the criminal law’s conscience’ (at [41]).²² Its wider formulation holds that a claimant ought not to be able to recover damages for losses they suffer while engaged in criminal activity: *ex turpi causa non oritur actio* (literally: no action may be founded on an illegal act). While the former is justified on the grounds of consistency, the latter is typically thought to rest on the broader idea that ‘it is offensive to public notions of

the fair distribution of resources that a claimant should be compensated (usually out of public funds) for the consequences of his own criminal conduct' (at [51]).²³ However, as we shall see, the public notions of fairness can be a tricky thing to predict—especially when it comes to 'compensating criminals'.

In order to establish the defence of illegality, the defendant must show that:

- (1) the claimant has engaged in illegal or immoral behaviour;
- (2) there was a sufficient link between the illegal behaviour and the tort; and
- (3) when considering the range of factors, the claim should be defeated.

***Gray v Thames Trains* [2009] UKHL 33 (HL)**

The claimant developed PTSD after being involved in the Ladbroke Grove rail crash, which killed 31 people and injured over 500 others.²⁴ The crash was caused by the defendants' negligence. Two years later, under the effects of this condition, Gray stabbed and killed a pedestrian in a 'road-rage' incident and was convicted of manslaughter on the grounds of diminished responsibility and sentenced to be indefinitely detained in hospital under the Mental Health Act 1983. Gray sued the defendants for, amongst other things, loss of earnings both before and during his detention as well as general damages for his detention, conviction and feelings of guilt and remorse and for the damage to his reputation. He also sought an indemnity against any claims that might be brought by the relatives of the pedestrian.

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↪ The House of Lords rejected his claim. An award of damages would set the civil law against the criminal law. Lord Rodger cited with approval the Law Commission's view in 2001 that 'it would be quite inconsistent to imprison or detain someone on the grounds that he was responsible for a serious offence and then to compensate him for the detention' (at [66]).²⁵ Gray's counter-argument that his earning potential had already been diminished by the defendants' negligence before his criminal act and that they remained responsible for this continuing partial loss also fell foul of the consistency principle, as well as being rejected by analogy with *Jobling v Associated Diaries Ltd* [1982].²⁶

Counterpoint

As Lord Brown notes, the facts of *Gray* and *Jobling* are not directly analogous. While the harm suffered by the claimant in the latter was superseded by a wholly unconnected disabling illness (the so-called 'vicissitudes principle'), there was no doubt in *Gray* that the manslaughter and detention were factually caused by the defendant's negligence: 'But for [the claimant's] negligence there would have been no manslaughter and no detention. That here is a given' (at [96]). Though *Baker v Willoughby*

[1970]²⁷ allows for some modification of the ‘vicissitudes principle’ in order to occasion justice, despite his sympathy for the ‘tragedy’ suffered by the claimant (at [89]) Lord Brown ultimately rejects this argument:

Whilst recognising that ... the tortfeasor benefits from criminality which in one sense he himself has contributed to bringing about, the opposite conclusion would result in the claimant being able to ignore a vicissitude for which he for his part has been held responsible (if only for a diminished extent). (at [101])

Do you agree? *Gray* leaves open what the position would be if the claimant had been found to be legally irresponsible by reason of insanity but is still indefinitely detained.²⁸ It is not clear whether *ex turpi causa* would apply in such circumstances (see Lord Phillips at [15] and Lord Rodger at [83]). What do you think a court would—and should—decide?

The existence of the defence of illegality does not, however, mean that one can *never* recover in tort for injuries suffered against a backdrop of criminality. As Bingham LJ noted in *Saunders v Edwards* [1987], it is not for the court to ‘draw up its skirts and refuse all assistance to the [claimant], no matter how serious his loss’ (at 1134). If the illegal act of the claimant is trivial or simply forms the background to the defendant’s tort, then it will not bar the claim. So, for example, if someone negligently damages your car while it is parked on double yellow lines, a court will not hold that your claim for damages is defeated on the basis that you were parked illegally. Your illegality is both trifling and in no meaningful way contributes to the damage you suffered.²⁹ Nor are participants in criminal activity *necessarily* prevented from recovering from each other. To use Lord Asquith’s example in *National Coal Board v England* [1954]:

A and B are proceeding to the premises which they intend burglariously to enter, and before they enter them, B picks A’s pocket and steals his watch, I cannot prevail on myself to believe that A could not sue in tort ... The theft is totally unconnected with the burglary. (at 429)

How, then, do the courts determine when a claimant’s unlawful conduct is sufficient to bar his claim in tort? One approach can be seen in the Court of Appeal’s decision in *Delaney v Pickett* [2011]. The claimant and defendant were transporting a large quantity of cannabis (one package was about the size of a small football) when the defendant negligently lost control of the car he was driving. The claimant was very seriously injured. The trial judge rejected his negligence claim against the driver on the basis that the parties were engaged in an unlawful enterprise. The Court of Appeal, applying the wider interpretation of Lord Hoffmann’s reasoning in *Gray*, allowed his appeal:

[T]he crucial question is whether ... the criminal activity merely gave occasion for the tortious act of the defendant to be committed or whether, even though the accident would never have happened had they not made the journey which at some point involved their obtaining and/or transporting drugs with the intention to supply, ... the immediate cause of the claimant's damage was the negligent driving. The answer to that question is in my judgment quite clear. Viewed as a matter of causation, the damage suffered by the claimant was not caused by his or their criminal activity. It was caused by the tortious act of the defendant in the negligent way in which he drove his motor car. In those circumstances the illegal acts are incidental and the claimant is entitled to recover his loss. (Ward LJ at [37])

Another approach to determining when a claimant's illegality will provide a defence can be seen in the Supreme Court's decision in *Hounga v Allen* [2014]. The claimant, Miss Hounga, had entered the UK illegally from Nigeria to work as a 'sort of *au pair*' (at [12]) for Mrs Allen, the defendant. She was 14 years old. During this time she was regularly subjected to serious physical abuse, culminating in an incident in which the defendant evicted her, causing her to sleep outside in wet clothes. The claimant was taken to social services and later brought a number of claims in contract and tort, including for harassment and discrimination. The Supreme Court unanimously held that the illegality defence did not defeat Hounga's claim in relation to the statutory tort of discrimination as there was not a 'sufficiently close connection between the illegality and the tort to bar the claim' (Lord Hughes at [59]).³⁰ The illegality 'was no more than the context in which Mrs Allen then perpetrated the acts of physical, verbal and emotional abuse' (Lord Wilson at [40]). Lord Wilson continued:

to uphold Mrs Allen's defence of illegality to her complaint runs strikingly counter to the prominent strain of current public policy against trafficking and in favour of the protection of its victims. The public policy in support of the application of that defence, to the extent that it exists at all, should give way to the public policy to which its application is an affront. (at [52])

p. 297 The approach adopted here involves weighing up all the relevant policy arguments and, in light of these, determining whether allowing the claim would run counter to public policy. So, the illegality defence is supported by a policy to avoid inconsistency in the law and to ensure that wrongdoers aren't unfairly rewarded for their wrongdoing. But these policies are stronger, or apply more strongly, in some cases than others. Moreover, there will often be policies which count against applying the illegality defence. For example, in *Hounga*, though the claimant acted unlawfully, since she knew she had entered the country illegally, laws against people trafficking are designed to protect people like the claimant and denying her claim would run counter to the important policy behind such laws. How these policy considerations weigh out will, of course, vary from case to case.

Pause for reflection

The benefit of the ‘range of factors’ approach adopted in *Hounga*, whereby the courts weigh up the various policy arguments for and against applying the defence, is that it enables the court to address these arguments directly and explicitly, such that the illegality defence will be made out only in those cases where the court considers that it really would be against public policy for the claim to succeed. The downside of this approach, however, is that it makes the application of the defence significantly uncertain. It will typically be unclear how a court will, or indeed how it should, weigh up the competing policies, and different judges are likely to differ on how these policies balance out. However, is this uncertainty a problem? Certainty is something the law rightly strives for. We cannot obey the law unless and until we know what the law expects of us. Nonetheless, certainty is not the only—or even an overriding—value for the law to promote and there are times when the law can do justice only at the cost of some uncertainty. Moreover, the people who are primarily affected by uncertainty in the application of the illegality defence are those engaged in illegal conduct. One way to avoid the uncertainty of the illegality defence is therefore not to break the law in the first place. Is this a good response to concerns about the uncertainty of the defence? What about, for example, other parties, who are not themselves engaged in unlawful conduct, who might need to know where the defence operates?³¹

For some judges, the uncertainty entailed by the sort of range of factors approach adopted in *Hounga* is simply too great. Their preference is for a less flexible and hence more predictable rule that the illegality defence will operate to defeat claims where, but only where, the claimant has to rely on their unlawful conduct to make out their claim. This division of opinion has been laid bare over recent years in the Supreme Court: while *Hounga* supported the range of factors approach, a majority favoured the narrower reliance rule only a year later in *Les Laboratoires Servier v Apotex Inc* [2014]. When the court considered the illegality defence once more in *Bilta (UK) Ltd v Nazir (No 2)* [2015] this split was evident once again, prompting Lord Neuberger to say that the court needed to settle the correct approach to the illegality defence ‘as soon as appropriately possible’ (at [15]). It got the chance in *Patel v Mirza*.

Patel v Mirza [2016] UKSC 42 (SC)

The claimant and defendant entered into a contract under which the claimant was to pay money to the defendant, which the defendant would then use to bet on the price of shares on the basis of inside information. Investing on the back of such information is criminal and the contract was

↪ accordingly unlawful too. In the end, the defendant did not obtain the information he needed to put the plan into action and the claimant sought the return of the money he had paid him. The question was whether the defendant could raise the claimant’s illegality as a defence to this claim.

A panel of nine Supreme Court Justices was convened to hear the appeal. All nine agreed that the illegality defence should not defeat the claim. The importance of the case, however, comes not in the result but in what the court had to say about the approach to be adopted in such cases. Once more the court was split but, by a 6:3 majority, it rejected the narrow reliance rule and endorsed a variant of the range of factors approach employed in *Hounga v Allen*. Lord Toulson, giving the lead judgment, stated:

The essential rationale of the illegality doctrine is that it would be contrary to the public interest to enforce a claim if to do so would be harmful to the integrity of the legal system. ... In assessing whether the public interest would be harmed in that way, it is necessary (a) to consider the underlying purpose of the prohibition which has been transgressed and whether that purpose will be enhanced by denial of the claim, (b) to consider any other relevant public policy on which the denial of the claim may have an impact and (c) to consider whether the denial of the claim would be proportionate response to the illegality, bearing in mind that punishment is a matter for the criminal courts. (at [120])

Lord Toulson acknowledged the concerns that this sort of approach could create uncertainty, but made the point that the need for the law to be certain is less pressing when it comes to those contemplating unlawful activity and that the alternative rule-based approach, adopted in cases like *Les Laboratoires Servier v Apotex Inc* and favoured by the minority, did not in fact provide significantly greater certainty, as the courts have tended to bend, or to create exceptions to, these rules in a bid to reach satisfactory results:

The public interest is best served by a principled and transparent assessment of the considerations identified, rather than by the application of a formal approach capable of producing results which may appear arbitrary, unjust or disproportionate. (at [120])

Pause for reflection

As you will have spotted, *Patel* was not itself a tort case. The claimant's allegation was not that the defendant had wronged him; rather, he simply claimed that the defendant should not be entitled to retain the money that the claimant had paid him, since the contract under which that money was paid was void and the purpose of the payment (to bet on share price movements) had failed. As such, the claim did not fall within the domain of tort law but instead belongs to the law of unjust enrichment. Nonetheless, the court made clear that the approach courts should take to the illegality defence should be, in broad terms, the same whether the claimant is looking to enforce a contract, recover compensation for a tort, claim an item of property or seeking restitution of an unjust enrichment.³²

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↪ The approach set out by Lord Toulson may well end up operating rather differently in various types of case: there is, for instance, less danger of a claimant being seen to gain from his unlawful conduct where he is seeking compensation for an injury than where he is looking to have a contract enforced. Nonetheless, in the first instance decision in *McHugh v Okai-Koi* [2017] it appeared to be common ground that *Patel* should apply in a personal injury tort claim. The judge, working through Lord Toulson's criteria, considered that 'the grounds of public interest' would not be 'enhanced' by denying the claim of the family of a woman killed following a particularly nasty incident of 'road rage'. (The defendant had been convicted of causing death by careless driving after Mrs McHugh, who had climbed onto the car's bonnet in order to prevent the defendant from driving away, had slipped off the bonnet, hitting her head on a Belisha beacon.³³)

As we have noted, a minority in *Patel* dissented from the majority's 'range of factors' approach, preferring instead a narrower and (so they considered) more certain rule-based approach. Nonetheless, we might have expected *Patel* to mark a decisive commitment to the range of factors approach, putting an end to the back and forth the courts have been engaged in over the correct approach to adopt in these cases. The very point of convening the nine-judge panel was, after all, to settle this question, at least for the time being.

Though *Patel* marks, in this way, a clean break from the disagreements which have plagued the illegality defence in recent years, the majority did not, with very few exceptions, think that the courts had been coming to the wrong decisions in illegality cases. The point of clarifying the approach the courts should adopt in relation to the illegality defence was to see that courts could come to the right decisions more directly and transparently and that the same approach should be adopted whatever the nature of the claim.³⁴ As such, much of the older case law remains a useful guide as to the sorts of situation in which the defence will be made out, even if some of the reasoning in these cases would now be rejected.³⁵

p. 300

However, in 2020, the illegality defence was considered yet again by the Supreme Court in *Henderson v Dorset Healthcare University NHS Trust Foundation* [2020]. The claimant, who was under the care of the defendant's community mental health team, had killed her mother while experiencing a serious psychotic episode. She was later convicted of manslaughter by reason of diminished responsibility. The NHS Trust admitted it had negligently failed to return the claimant to hospital following a deterioration of her condition and that, had it done so, the tragic events would not have taken place. However, they argued that the claimant's claim for damages for the losses she had suffered as a result of her actions was barred on ↪ the basis of illegality because the damages she claimed resulted from: (a) the sentence imposed on her by the criminal court; and/or (b) her own criminal act of manslaughter. A key question for the court was whether, following *Patel*, they were still bound by the House of Lords' opinion in *Gray*.³⁶ Rejecting the claimant's claim, the court unanimously agreed that *Gray* remained good law and compatible with the approach set out in *Patel*. The application of the illegality defence was justified on two public policy considerations: consistency between the criminal law and tort law and the need to maintain public confidence in the legal system:

For one branch of the law to enable a person to profit from behaviour which another branch of the law treats as being criminal or otherwise unlawful would tend to produce inconsistency and disharmony in the law, and so cause damage to the integrity of the legal system ... the decision in *Gray* should be affirmed as being '*Patel* compliant'—it is how *Patel* 'plays out in that particular type of case'. The clearly stated public policy based rules set out in *Gray* should be applied and followed in comparable cases. (Lord Hamblen at [119], [145])³⁷

Lord Hamblen in *Henderson* left open the possibility, raised by Lords Phillips and Roger in *Gray* and more recently by Lord Sumption, that there may be some exceptional cases in a criminal act where the illegality defence will not succeed:

In *Les Laboratoires Servier v Apotex Inc* [2015] Lord Sumption stated at para 23 that: 'The paradigm case of an illegal act engaging the defence is a criminal offence.' ... [T]here may be some exceptional cases where a criminal act will not constitute turpitude. The reservation made in *Gray* in relation to trivial offences may be an example of such a case, as may be strict liability offences where the claimant is not privy to the facts making his act unlawful. (at [112])

While Lord Hamblen was clear that 'the serious criminal offence of manslaughter by reason of diminished responsibility does not come close to falling within such an exception and clearly engages the defence' (at [112]), the possibility of the existence of such a category—and the fact that the Supreme Court has granted permission to appeal in *Lewis-Ranwell v G4S Health Services (UK) Ltd and others* [2024] (the sixth time the court has considered the defence since 2014)—means the limits of the illegality are likely to be tested again at some point in the not too distant future.

***Lewis-Ranwell v G4S Health Services (UK) Ltd and others* [2024] EWCA Civ 138 (CA)**

Lewis-Ranwell killed three men while suffering a serious psychotic episode. He had been held in police custody in the 48 hours prior to the killings, during which he had exhibited concerning behaviour. He was later found not guilty of murder and manslaughter by reason of insanity, and detained in hospital under the Mental Health Act 1983. He subsequently commenced

↪ proceedings against G4S Health Services (UK) Ltd, the police, the NHS and Devon County Council for negligence on the basis that it should have been obvious that he was a risk to others and ought to have been detained. The defendant sought to have the case struck out on the basis that his claim was founded on the claimant's illegal act.

The majority of the Court of Appeal refused to strike out the case, holding that where a person has committed a crime, but has been found not guilty by reason of insanity, the defence of illegality does not prohibit them from claiming damages from those who were responsible for assessing their mental wellbeing at the relevant time. Sharp P continued:

p. 301

[*Clunis, Gray and Henderson* draw] a coherent and bright line distinction for the purposes of the *ex turpi causa* doctrine, between those who are criminally responsible for their acts whether fully or partially, and those who are not responsible for their acts because they do not know what they are doing is morally and legally wrong. In my judgment, this common thread running through the criminal and civil law, is consistent with principle, a proper understanding of the true implications of acute mental illness and is one that would not offend the sensibilities of ordinary right-thinking members of the public or undermine public confidence in the law. (at [161])³⁸

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-10-3>>.

10.4 Contributory negligence

Contributory negligence is a partial defence. It operates not to defeat the claimant's claim entirely but rather to reduce the amount of damages the defendant must pay. It will be raised by a defendant where the claimant has failed to take reasonable steps for their own safety *and* this failure has contributed to the injury the claimant has then suffered. Where the defence is raised successfully, it will mean that *both* the claimant and the defendant are responsible, at least in part, for the claimant's losses and accordingly those losses are split between them.

In a typical accident case, where there are faults on the part of the victim (C) and the defendant (D) both of which then and there directly contribute to the accident, ... there is no difficulty in finding that C suffers damage partly as a result of his own fault and partly as a result of the fault of D. Such cases are the regular diet of judges in the courts day in and day out. (Dyson LJ, *St George v Home Office* [2008] at [54])

Section 1(1) of the Law Reform (Contributory Negligence) Act 1945 states that a court can reduce the claimant's damages by whatever amount seems just according to their share in responsibility for the damage.

Law Reform (Contributory Negligence) Act 1945

- (1) Where any person suffers damage as the result partly of his own fault and partly of the fault of any other person or persons, a claim in respect of that damage shall not be defeated by reasons of the fault of the person suffering the damage, but the damages recoverable in respect thereof shall be reduced to such an extent as the court thinks it is just and equitable having regard to the claimant's share in the responsibility for the damage ...

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↪ 'Fault' is defined in section 4 of the Act as 'negligence, breach of statutory duty or other act or omission which gives rise to a liability in tort'.³⁹ The same section also establishes that damage includes loss of life and personal injury.

In order for the defence to be raised, three questions need to be addressed:

- (1) Did the claimant fail to exercise reasonable care for their own safety?
- (2) Did this failure contribute to the claimant's damage? and
- (3) By what extent should the claimant's damages be reduced?

10.4.1 Did the claimant fail to exercise reasonable care for their own safety?

When determining whether the claimant has taken reasonable care for their own safety an objective standard is applied. The question is 'what would a reasonable person in the claimant's position have done to avoid being hurt?'

Jones v Livox Quarries Ltd [1952] 2 QB 608 (CA)

The claimant was riding on the back of a slow-moving tracked vehicle at work, contrary to company regulations, when a dumper truck crashed into the back of it, seriously injuring the claimant. He sued his employer, claiming that the driver of the dumper truck was negligent in failing to keep a proper look-out. In response, the defendants argued that the claimant had caused or contributed to his own injuries by his own carelessness in riding on the back of the truck.

The Court of Appeal agreed: 'A person is guilty of contributory negligence if he ought reasonably to have foreseen that, if he did not act as a reasonable prudent man, he might be hurt himself; and in his reckonings he must take into account the possibility of others being careless' (Denning LJ at 615). The claimant's award of damages was reduced by 20 per cent.

While at first sight contributory negligence appears to be a useful mirror image of negligence, which allows for the reduction of damages where the claimant is also 'at fault', the practical effects of a finding of contributory negligence are, Peter Cane and James Goudkamp argue, somewhat less satisfying:

A finding that the defendant is guilty of negligence shifts a loss away from the claimant and typically spreads it throughout a wide population by means of insurance ... A finding of contributory negligence usually has precisely the opposite effect, which is to leave part or all of the loss on the claimant, who will typically be without insurance. Thus, reduction of damages for contributory negligence falls much more heavily on the claimant than liability for negligence bears on the defendant.⁴⁰

p. 303 ↪ This may be behind the courts' willingness to make allowances for the personal characteristics and qualities of the claimant when making findings of contributory negligence. As with setting the standard of care for the defendant, the law allows for some modification of this objective standard to take into account at least some characteristics of the claimant.

Illness is one example. In *Spearman v Royal United Bath Hospitals NHS Foundation Trust* [2017], for example, the judge rejected an argument that a claimant, who was being treated in a hospital's emergency department, was contributorily negligent in relation to the serious injuries he had sustained after climbing onto, and subsequently falling from, a flat roof on the hospital's premises:

Whether as a result of the ongoing effects of the hypoglycaemic attack or the effects of the pre-existing brain injury [caused by an accident some 30 years early] or a combination of the two, the claimant did not appreciate the danger he was in, in climbing the fence ... where a person's state of mind is such that, whether temporarily or permanently, they do not appreciate that they are putting themselves in danger and it cannot be said that they should have so appreciated. Otherwise, that would be to penalise a person for being ill or of unsound mind, and the law does not do that.⁴¹ (at [74])

Age is another example.

A very young child cannot be guilty of contributory negligence. An older child maybe. But it depends on the circumstances. A judge should only find a child guilty of contributory negligence if he or she is of such an age to be expected to take precautions for his or her safety: and then he or she is only to be found guilty if blame should be attached to him or her. A child has not the road sense or experience of his or her elders. He or she is not to be found guilty unless he or she is blameworthy. (Lord Denning in *Gough v Thorne* [1966] at 1390)

There are no hard-and-fast rules as to the age at which a child will be found contributorily negligent. In *Gul v McDonagh* [2021], counsel noted that there were no reported cases of a child under the age of 8 being found contributorily negligent (at [11]), though it is certainly the case that young teenagers can have findings against them (see e.g. *Jackson v Murray* [2015]). In *Young v Kent County Council* [2005], for example, a 12-

year-old boy who was seriously injured after falling through a roof while attempting to retrieve his football was considered by the court to be ‘as much to blame as the defendants’ (at [34]). His damages were reduced by 50 per cent to reflect this. More recently in *Gul* the claimant—a 13-year-old boy—who suffered ‘catastrophic injuries’ when he was hit by a car which was being driven at over twice the 20 mph speed limit was found to be 10 per cent contributorily negligent on the basis that he had failed to recognise that a car was being driven much faster than usual and adjust his actions accordingly. (The defendant was later convicted of dangerous driving.)

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In my judgment that should have been apparent to a reasonable adult who had made an appropriate assessment of the dangers he faced in crossing the road. I then have to consider whether a reasonable 13-year-old with the claimant’s experience should be expected to have made the same judgment. I accept that many children cannot judge how fast vehicles are going or how far away they are. However, at 13, I consider it likely that the claimant would have experience of crossing roads on his own, even roads where traffic might be going at 40mph. It would be wholly wrong to expect the claimant to have been able to estimate the precise speed of the Focus. However, ... a reasonable 13-year-old making a careful assessment would have realised ↵ that the Focus was being driven much faster than usual. Further, although the claimant did not have far to go, I consider that a reasonable 13-year-old would have considered that the Focus represented a source of potential danger and would have waited for the Focus to pass. Further, even if a reasonable 13-year-old had set off, I consider that they would have kept the Ford Focus under observation so that, if necessary, they could hurry across the very short distance. (Gargan J at [89])

It is also clear is that where the claimant’s failure to take reasonable care for their own safety is a result of them being intoxicated, they cannot rely on this to avoid a finding of contributory negligence against them (unless they are unconscious):

If an intoxicated pedestrian falls down a manhole that a sober person would have seen and avoided, it seems impossible to hold that the pedestrian was not guilty of contributory negligence because the pedestrian’s condition prevented him or her from seeing the danger. (Underhill LJ, *Campbell v Advantage Insurance Co Ltd* [2021] at [50] quoting McHugh J in the Australian case of *Joslyn v Berryman* [2003])

In *Campbell v Advantage Insurance Co Ltd* [2021], the claimant suffered catastrophic brain damage when the car in which he was a passenger collided with a lorry. Both the driver and claimant had been drinking heavily before getting into the car. The claimant was found to be 20 per cent contributorily negligent:

... the issue is ... whether an ordinary reasonable person—a sober person—would have foreseen that accepting a lift from the intoxicated driver was exposing him or her to a risk of injury by reason of the driver’s intoxication. If a reasonable person would know that he or she was exposed to a risk of injury in accepting a lift from an intoxicated driver, an intoxicated passenger who is sober enough to enter the car voluntarily is guilty of contributory negligence. The relevant conduct is accepting a lift from a person whose driving capacity is known, or could reasonably be found, to be impaired by reason of intoxication’ ... It is important, however, to note [the] reference to the passenger being, although intoxicated, ‘sober enough to enter the car voluntarily’. A person who while unconscious through drink is put by friends or others into a car which is then driven by an (evidently) drunken driver will not be guilty of contributory negligence, because they have done no voluntary act: to put it another way, they will not have consented to being driven at all. However foolish it may be to drink yourself into a stupor, you cannot be treated as having consented to things that are then done to you while in that state. (Underhill LJ at [52]–[53] quoting *McHugh J*, *Joslyn v Berryman* at [38])

Other examples of situations in which the claimant has been found to have failed to exercise reasonable care for their own safety include pulling out from a side road in front of a police car travelling at speed and with its blue light flashing (*Armsden v Kent Police* [2009]), attempting to cross the road when the red man at a pedestrian crossing was against the pedestrian (*Rehill v Rider Holdings Ltd* [2012]),⁴² jumping off (rather than climbing down) an indoor climbing wall (*Pinchbeck v Craggy Island Ltd* [2012]), jumping from a moving taxi (*Hicks v Young* [2015]), standing in the middle of the road in order to ‘moon’ (show one’s bare bottom) at passing cars while in an intoxicated state (*Ayres v Odedra* [2012]) and climbing onto the bonnet of a car to prevent it from driving away (*McHugh v Okai-Koi* [2017]).

p. 305 10.4.2 Did this failure contribute to the claimant’s damage?

The claimant’s own carelessness will only provide a defence to the defendant’s negligence when it makes some contribution *to the injuries they suffered*; for example, if the claimant has contributed in some way to the accident that has caused their injury or where their failure to wear a seat belt has contributed to their injury. If the claimant is careless but that carelessness did not have any bearing *on their injury* then the defence of contributory negligence will not arise: their negligence is not contributory. In *Campbell v Advantage Insurance Co Ltd*, for example, the trial judge found that the claimant would have suffered the same injuries whether or not he was wearing a seat belt and so his failure to wear one did not amount to contributory negligence (the finding of contributory negligence against him was grounded in his failure to exercise reasonable care for his own safety in allowing himself to be driven by the defendant who had been drinking) (at [7]).

In all successful cases of contributory negligence, there will be more than one cause of the claimant’s injuries—that is, both the claimant and defendant will have contributed to the accident (if the defendant’s breach of duty was not a ‘but for’ cause of the injury then any claim would fail even before we get to the question of defences).⁴³ However, even where the claimant’s carelessness was a ‘but for’ cause of their own injuries the defence will not be available if the injuries they suffered arose from some risk or danger of which they were not aware and against which they could not have been expected to take precautions. In *Jones v Livox Quarries Ltd*, for example, Denning LJ considered what the position of the claimant would have been had he been

negligently shot while riding on the back of the truck. In this case, he suggested, the claimant would not be contributorily negligent *even though* he was partly to blame—after all, had he not been acting unreasonably by riding on the back of the truck he would have been elsewhere when the shot was fired. In this example, we might say that the claimant's actions merely provide the setting or the circumstances in which the injuries were suffered, rather than being a cause of them; his loss—being shot—would have had nothing to do with why it was unreasonable to travel on the back of the truck (at 616).

Thus in *St George v Home Office* [2008] the claimant, a prisoner who suffered severe brain damage after falling from a top bunk as a result of an epileptic seizure brought on by drug and alcohol withdrawal, was not found to be contributorily negligent. Though 'but for' his addiction he would not have fallen from the bunk, his addiction was too remote in time and place to allow his injury to be properly regarded as a potent cause of the injury as required by the Act: 'The fault is not sufficiently closely connected with the defendant's negligence. Rather, the fault is part of the claimant's history which has led to his being a man who is suffering from a particular medical condition' (Dyson LJ at [58]).⁴⁴ As such this can be distinguished, Dyson LJ suggested, from a situation where the claimant is intoxicated and walks into the path of a negligently driven car:

[t]he fault of such a person (negligently walking into the path of a car) is a potent cause of the injury which he sustains in the accident. The fault (walking in the road in a drug-induced state of intoxication) is closely connected in time and place with the accident which is caused then and there by a combination of the negligence of the claimant and the defendant. (at [57])

p. 306 10.4.3 By what extent should the claimant's damages be reduced?

Section 1(1) of the 1945 Act offers no guidance as to how the award of damages is to be reduced, or responsibility is to be apportioned, save for requiring that the damages be reduced to such extent as the court thinks 'just and equitable having regard to the claimant's share in the responsibility for the damage' (as opposed to responsibility for the accident). When deciding by how much to reduce the award of damages to the claimant, the courts look to the *comparative blameworthiness* of the parties and to the 'relative importance of [the claimant's] acts in causing the damage' (*Stapley v Gypsum Mines Ltd* [1953] at 682; *Davies v Swan Motor Co* [1949]). If the parties are equally to blame the damages will be reduced by 50 per cent; if the defendant is twice as blameworthy as the claimant they will be reduced by 33 per cent, and so on.⁴⁵

Pause for reflection

In their empirical study of 368 first instance decisions in contributory negligence in England and Wales between 2000 and 2014, James Goudkamp and Donal Nolan found the following:

1. Contributory negligence is successful in 60 per cent of the claims in which it is raised.
2. The average discount was 40.5 per cent.
3. Claims were most likely to be reduced by one-half, one-third and one-quarter, with discounts at the higher end of the spectrum occurring 'relatively infrequently' ...
7. Children aged over 10 are treated more harshly than adult claimants, both when deciding whether to make a finding of contributory negligence and when determining the discount where contributory negligence has been found.
8. There is no 'compelling evidence' of gender difference in the finding of contributory negligence, or the awards made.
9. Findings of contributory negligence and the discount awarded in cases of personal injury had remained 'fairly constant' over the 14 year period.⁴⁶

As Goudkamp and Nolan note, these findings are important as the vast majority of cases where contributory negligence is raised are heard in the County Court, where the decision is often unreported. This means that judges, lawyers and the parties are likely to have little awareness of these earlier decisions. Goudkamp and Nolan hope the 'greater clarity' provided by their study 'may aid claimants, whom it has been suggested may be induced by the uncertainty surrounding the doctrine to accept low settlement offers' and provide transparency and guidance to judges, 'mak[ing] the task of apportioning damages a little easier'.⁴⁷

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***Froom v Butcher* [1976] QB 286 (CA)**

The claimant suffered head and chest injuries and a broken finger when his car was negligently hit by the defendant. The claimant was not wearing a seat belt. At the time there was no statute requiring people to wear seat belts and the claimant preferred not to wear one because he had at one time seen an accident where the driver would have been trapped if he had been wearing one.

The Court of Appeal held that the claimant was contributorily negligent *in respect of the injuries he would have avoided if he had worn a seat belt*. His damages were reduced by 20 per cent (as had been previously agreed by the parties). The court went on to lay down guidelines in relation to the appropriate reduction in damages for failing to wear a seat belt (see **Table 10.1**).

Table 10.1 Reduction in damages payable for failure to wear a seat belt or appropriate crash helmet on a motor-bike

Level of injury	Reduction
Prevented completely	25%
Less severe	15%
No difference	0%

In *Stanton v Collinson* [2010], the Court of Appeal found that a teenager who suffered serious head injuries in a car accident in which he was not wearing a seat belt was *not* contributorily negligent on the grounds that it had not been shown that a belt, if worn, would sufficiently have reduced the injuries suffered. Hughes LJ continued:

[The Law Reform (Contributory Negligence) Act 1945] ... permits an approach such as adopted in *Froom v Butcher* ... and the general proposition that, absent something exceptional, there should be no reduction in a case where the injury would not have been reduced 'to a considerable extent' by the seat belt ... Both parties in this appeal urged upon us, in different contexts, the undesirability of a prolonged or intensive enquiry in these cases. They were right to do so; there is a powerful public interest in there being no such enquiry into fine degrees of contributory negligence, so that the vast majority of cases can be settled according to a well-understood formula and those few which entail trial do not mushroom out of control. *Froom v Butcher* so states, and is binding. (at [26])

The *Froom v Butcher* guidelines have subsequently been applied in relation to a claimant's failure to wear a motorbike helmet in *Capps v Miller* [1989] and in relation to cycle helmets in *Smith v Finch* [2009] and *Reynolds v Strutt and Parker* [2011].⁴⁸

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Pause for reflection

It is clear from the judgment in *Froom v Butcher* that the claimant was reluctant to wear a seat belt and dubious of the safety benefits in so doing. At the time, wearing seat belts was not compulsory and, in the face of considerable parliamentary opposition, the government had to fall back on its Highway Code to 'strongly advise' motorists to fit and wear seat belts. This meant that although wearing seat belts remained, in principle, optional, the failure to wear one could be brought as evidence in civil proceedings. By finding the claimant in *Froom v Butcher* contributorily negligent, the Court of Appeal relied on the deterrent effects of tort law to fill this 'legislative gap'.⁴⁹ Motorists who may be willing to risk more serious injury by not wearing a seat belt were not, it seemed, as willing to risk a proportion

of their award of compensation should the worst happen and began to buckle up.⁵⁰ It remains to be seen whether the possibility of a finding of contributory negligence will have a similar effect in relation to the wearing of cycle helmets.⁵¹

The question of apportionment was considered by the Supreme Court in *Jackson v Murray* [2015].

***Jackson v Murray* [2015] UKSC 5 (SC)**

The claimant, a 13-year-old child, suffered severe, life-changing injuries after being hit by a car when she ran into the road after alighting from her school bus.⁵² The driver of the car was liable in negligence. However, the Lord Ordinary (the trial judge) found the 'principal cause' of the accident was the 'reckless folly' of the claimant: either she did not look before crossing the road or, having looked, she failed to identify and react sensibly to the presence of the car in close proximity. In light of this, she was contributorily negligent and her damages were reduced by 90 per cent, reduced to 70 per cent on appeal.

Allowing her appeal, by majority, the Supreme Court found the parties to be 'at least equally as blameworthy' (at [43]), increasing the claimant's award to 50 per cent of the agreed damages (amounting to a reported £1.1 million). Lord Reed, for the majority, continued: 'It is not possible for a court to arrive at an apportionment which is demonstrably correct. The problem is not merely that the factors which the court is required to consider are incapable of precise measurement. More fundamentally, the blameworthiness of the pursuer and the defender are incommensurable' (at [27]). The decision is 'inevitably a somewhat rough and ready exercise ... different judges may legitimately take different views of what would be just and equitable in particular circumstances, [and] it follows that those differing views should be respected, within the limits of reasonable disagreement' (at [28]). However, in this case, the views of both the Lord Ordinary and Extra Division judges fell beyond these limits, hence the majority's increase of the claimant's award.

p. 309 ↩ There were two central questions in *Jackson*. How should responsibility be apportioned? And what principles should govern the review of an apportionment by an appellate court? There was agreement among the Justices that the first was to be answered by reference to the respective causative potency of the parties' acts and their respective blameworthiness and that, in respect of the second, an appellate court should only alter the assessment of the court below where the court 'has manifestly and to a substantial degree gone wrong' (at [46]). However, as the split decision demonstrates, despite agreeing on the approach to be adopted, there remained room for considerable differences of opinion on its application.

Without doubt, the claimant had also failed to take reasonable care for her own safety. As the Lord Ordinary noted: ‘either she did not look to her left within a reasonable time before stepping out, or she failed to make a reasonable judgment as to the risk posed by the defender’s car’ (cited at [41]). But what of the defendant’s negligence—it was agreed by the parties that ‘if he had been driving at a reasonable speed, and had been keeping a proper look-out, he would not have hit her’ (at [1]).

It was then about 40 minutes after sunset, and the light was fading. Vehicles had their lights on. The bus stopped, with its headlights on, and signs to the front and rear indicating that it was a school bus. The driver put on the bus’s hazard lights. A number of vehicles following the bus stopped behind it. The [defendant] was driving home in the opposite direction. His lights were switched on. As he approached the scene, he saw the stationary bus on the other carriageway. He had a view of the stationary bus for at least 200 metres. He had seen the school bus on this road before. He was travelling at about 50 mph. He did not slow down. His position in evidence was that he could not remember whether he had thought at the time that the bus might have stopped to drop children off. He regarded the risk of children running out unexpectedly as irrelevant: such a risk was ‘not his fault’, as he put it ... The defender was unaware of her presence until the moment of impact. Since she must have been within his line of vision for approximately 1.5 seconds between emerging from behind the bus and the moment of impact, the Lord Ordinary inferred that he was not keeping a look-out for the possibility of such an event occurring. If he had had in mind the possibility that someone might emerge, he would have seen her earlier than he did. (Lord Reed at [7], [9])

Pause for reflection

The courts have consistently imposed a high burden on car drivers, to reflect the potentially dangerous nature of driving:

A pedestrian has to look to both sides as well as forwards. He is going at perhaps three miles an hour and at that speed he is rarely a danger to anyone else. The motorist has not got to look sideways though he may have to observe over a wide angle ahead: and if he is going at a considerable speed he must not relax his observation, for the consequences may be disastrous ... In my opinion it is quite possible that the motorist may be very much more to blame than the pedestrian. (Lord Reid, *Baker v Willoughby* [1970] at 490)⁵³

With this in mind the trial judge’s decision to find the claimant in *Jackson* 90 per cent responsible for her injuries seems particularly harsh. In fact, the case is a good example of the difficulty

↪ courts have in relation to how to apportion responsibility between two negligent parties. The claimant was variously found to be between 90 per cent and 50 per cent responsible for her injuries. Do you think the Supreme Court reached the right decision in this case? Compare, for example, the finding in *Gul* in which Gargan J held:

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In determining what reduction it is just and equitable to make on account of the claimant's contributory negligence, it is necessary to evaluate the relative degree of blameworthiness and causative effect of the acts and omissions which constitute negligence on the part of the claimant and the first defendant respectively. It is generally expected that a court will impose a high burden on drivers of cars to reflect the fact that a car is potentially a dangerous weapon. The first defendant's driving in this case was particularly egregious. His speed excessive, the risk of injury obvious and his motivation the desire to avoid arrest. Insofar as the claimant could see the defendant so too the defendant could see the claimant and could and should have slowed down. It would not have taken much adjustment on the part of the defendant to allow the claimant to complete that final 30cm across the road. The causative potency of all these factors is extremely high and must weigh heavily against the first defendant. ... Whilst deeply sympathetic to the claimant, I do not think his culpable misjudgment can be wholly ignored. However, when balanced against the conduct of the first defendant it falls very much at the lowest end of the scale ... I consider that the just and equitable reduction in all the circumstances of this case is 10 per cent (at [97]–[98], [100])

Peter Cane and James Goudkamp have suggested that 'negligent people do not pay for the consequences of their negligence; but contributorily negligent people do pay for the consequences of their contributory negligence'.⁵⁴

In our video 'Paying the price for an act of "reckless folly"' we argue that the decision in *Jackson* is a clear example of where this appears to be the case.

Video playback is not supported in this format.

Video 10: Paying the price for an act of 'reckless folly'

Test your understanding by trying this section's self-test questions <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-10-4>>.

10.5 Conclusion

When the other elements of a claim in negligence have been met, the defendant may still be able to limit their liability in whole or in part by raising a defence. This chapter has considered the application of three defences—*voluntary assumption of risk*, *illegality* and *contributory negligence*. Although the latter is confined to

negligence, the others apply more widely. In order to establish *voluntary assumption of risk*, the defendant must show that the claimant consented to (rather than was simply aware of) the full extent and nature of the risk. As such it works to encourage the claimant to take personal responsibility for their actions, particularly when they are involved in inherently risky activities while *illegality* operates to defeat a claim where the action arises out of an illegal activity. While *Patel* appears to have gone some way to quelling debates as to the application of illegality, at least for the time being, it, remains—to paraphrase Sedley LJ—a somewhat ‘blunt instrument’ with which to do justice (*Vellino* at [55]). *Contributory negligence* is the most common and successful defence in negligence. Unlike the other defences considered in this chapter, which exonerate the defendant from having to pay anything, contributory negligence *reduces* the damages of a claimant whose failure to exercise reasonable care for their own safety has contributed to their injury.

p. 311 End-of-chapter questions

After reading the chapter carefully, try answering the questions which follow.

- 1 Outline each of the three defences discussed in this chapter. What do you think are their strengths and weaknesses?
- 2 The defence of illegality ‘expresses not so much a principle as a policy. Furthermore, that policy is not based upon a single justification but on a group of reasons, which vary in different situations’ (Lord Hoffmann, *Gray v Thames Trains* [2009] at [30]). Discuss with reference to recent case law.

If you would like to know what we think, check the **answer guidance** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-10-answers-to-end-of-chapter-questions?options=showName>>.

Answering the problem question

Consider again the problem question at the start of this chapter. Now having read about defences, what would be your advice to Ben and Oriq? Do you think they are likely to recover compensation in respect of their injuries from Viêt? (You should assume that, in the absence of applicable defences, they would have a good claim in negligence.)

Here are some pointers to get you started:

- Will Oriq’s claim against Viêt be defeated by the defence of illegality?
- Has Ben been contributorily negligent—both in relation to jumping in beside Viêt and failing to wear a seat belt?

If you need some more guidance:

- See the **annotated version of the problem with issues and cases to consider** <<https://iws.oupsupport.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-10-annotated-problem-question-interactive>>.
- Check your answer against the **suggested outline answer** <<https://iws.oupsupport.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-10-answers-to-problem-question>>.

Further reading

The references below are a good place to start your further reading; however, you should bear in mind that—particularly, but not only, in relation to illegality—there has been a lot of recent case law and so some of the discussions of the law may be a little out of date.

Burrows, Lord The Illegality Defence after *Patel v Mirza*, The Professor Jill Poole Memorial Lecture 2022, Aston University, 24 October 2022.

Cane Peter and James Goudkamp *Atiyah's Accidents: Compensation and the Law* (9th edn CUP 2018) 44–58

Field, Ian D 'Contributory Negligence and the Rule of Avoidable Losses' (2018) 38 Oxford Journal of Legal Studies 475

Gardner, Jodi 'Rethinking Risk-Taking: The Death of *Volenti*' [2023] Cambridge Law Journal 110

Goudkamp, James 'Rethinking Contributory Negligence' in Erika Chamberlain, Jason Neyers and Stephen Pitel (eds) *Challenging Orthodoxy in Tort Law* (Hart 2013)

p. 312 Goudkamp, James *Tort Law Defences* (Hart 2013) ↵

Goudkamp, James and Donal Nolan 'Contributory Negligence in the Court of Appeal: An Empirical Study' (2017) 37 Legal Studies 437

Green, Sarah and Alan Bogg (eds) *Illegality after Patel v Mirza* (Hart 2018)

Jaffey, AJE '*Volenti Non Fit Injuria*' [1985] Cambridge Law Journal 87

Law Commission *The Illegality Defence* (Law Com No 320, 2010)

Lord Mance '*Ex Turpi Causa*: When Latin Avoids Liability' (2014) 18 Edinburgh Law Review 175

Lord Sumption 'Reflections on the Law of Illegality' (2012) 20 Restitution Law Review 1

Webb, Charlie 'Illegality' in William Day and Sarah Worthington (eds) *Challenging Private Law: Lord Sumption on the Supreme Court* (Hart 2020)

Additional suggestions for further reading can be found in this chapter's **web links** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-10-web-links?options=showName>>.

Notes

- ¹ There are many more defences in tort law than can be covered in this chapter, or indeed this book. See further James Goudkamp *Tort Law Defences* (Hart 2013) in which he discusses 38 defences including insanity, mistake and bankruptcy.
- ² A note on terminology: typically the case law refers to 'consent' in the context of intentional torts and to '*volenti*' or 'voluntary assumption of risk' in relation to negligence. However, as Jodi Gardner argues, while consent and *volenti* are invariably treated as synonymous, there are important differences between them—most notably the fact that 'the presence of consent *always* operates to defeat a claim in tort' ('Rethinking Risk-Taking: The Death of *Volenti*' [2023] Cambridge Law Journal 110, 112).
- ³ This includes the statutory negligence regimes considered in **Chapters 11 to 14**.
- ⁴ Consent is also discussed in **section 15.5.1**. There are other defences that are peculiar to specific torts—most obviously in relation to defamation and nuisance. These are discussed in the appropriate chapters.
- ⁵ In this case, the House of Lords rejected the application of *volenti* in relation to injuries suffered by an employee at work as a result of his employers not warning him of the moment of a reoccurring danger (even though he was aware of the general risk of the danger occurring). See further **Chapter 13**.
- ⁶ DM Gordon 'Wrong Turns in the Volens Cases' (1945) 60 Law Quarterly Review 140, 140.
- ⁷ Stephen Sugarman 'Assumption of Risk: The Monsanto Lecture' (1996) 31 Valparaiso University Law Review 833, 834.
- ⁸ Between 1814 and 2022, only 68 cases considered *volenti* in detail, and the defence was successful in just 16 cases (Gardner **n2** 131).
- ⁹ Gardner, *ibid* 114, 137.
- ¹⁰ This doesn't happen very often. It is not the same as 'consenting' to the risk of being injured, e.g. by a kick in a football match or sustaining injury in any other 'risky' activity. See further Lord Diplock in *Wooldridge v Sumner* [1963] at 69–70. ***Morris v Murray* [1991]** (discussed in this chapter) is a very good example of just how far someone has to go for the courts to consider that the claimant consented to the risk of being harmed by another's negligence.
- ¹¹ Unless the premises are business premises, in which case the occupier cannot exclude liability for negligently caused personal injury or death (Unfair Contract Terms Act 1977, s 2(1)). See further **section 11.2.2.4**. For a discussion of the operation of *volenti* in the context of an occupier's liability claim, see ***White Lion Hotel v James* [2021]**.
- ¹² Discussed further in **section 15.5.1**.
- ¹³ As a result, defendants in similar cases today seek to rely on illegality and/or contributory negligence in order to prevent or reduce their liability. See further *Clark v Farley* [2018]; *Campbell v Advantage Insurance Co Ltd* [2021].
- ¹⁴ In which the House of Lords rejected the argument that the claimant, who had committed suicide while in police custody, had voluntarily assumed the risk of their own suicidal actions.

- ¹⁵ The latter requirement may mean that a claimant who is completely drunk is better protected than someone who is sober or only slightly tipsy. However, providing the claimant is still able to be aware of risk, it makes no difference if the alcohol makes them more likely to take the risk or, indeed, to give the risk no thought at all.
- ¹⁶ Where the claimant, who had been injured while teaching the defendant to drive, was found to be contributorily negligent as he was jointly controlling the car at the time of the accident. See **section 8.3**.
- ¹⁷ The same applies to spectators, as we saw in *Wooldridge v Sumner* [1963] discussed in **section 8.4**. Though in such cases it is more likely that the claim will fail on the grounds that the conduct was not, in the circumstances of the case, negligent.
- ¹⁸ See also *Craven v Davies* [2018].
- ¹⁹ Let us assume that, like the claimant in *Morris*, they could easily have avoided the risk by returning home earlier or taking an Uber.
- ²⁰ Although this case was decided on the grounds of duty of care rather than *volenti*, the issues it raises are on point. The claimant was badly injured after falling awkwardly from a climbing wall. Allowing the appeal, the Court of Appeal held that in light of the inherent and obvious risks in the activity which the claimant had voluntarily undertaken, the climbing centre was not under a duty to prevent the claimant from undertaking said risks, or to train and/or supervise him while he did so.
- ²¹ Peter Cane and James Goudkamp *Atiyah's Accidents: Compensation and the Law* (9th edn CUP 2018) 72.
- ²² Citing EK Banakas 'Tort Damages and the Decline of Fault Liability: Plato Overruled but Full Marks to Aristotle!' [1985] *Cambridge Law Journal* 185, 197.
- ²³ For further discussion of the rationales of the illegality defence, see ***Patel v Mirza* [2016]**.
- ²⁴ This BBC News report on the Ladbroke Grove train crash <http://news.bbc.co.uk/1/hi/uk/8285588.stm> gives you some interesting background to the facts of *Gray*. It includes interviews with a survivor, a firefighter who attended the crash and with the family of one of those who died. If you would rather not read the details about the crash, then that is fine, simply move on to the next section.
- ²⁵ In *The Illegality Defence in Tort* (2001) [4.100].
- ²⁶ *Jobling* is discussed in **section 9.2.3**.
- ²⁷ *Baker* is discussed in **section 9.2.3**.
- ²⁸ See the discussion of ***Lewis-Ranwell v G4S Health Services (UK) Ltd and others* [2024]**.
- ²⁹ Though, depending on the facts, your actions may be contributorily negligent.
- ³⁰ The court was divided on the position in relation to the contract claim (see Lord Hughes's partial dissenting judgment beginning at [53]).
- ³¹ See ***Patel v Mirza* [2016]** at [158].
- ³² This was confirmed in *Henderson v Dorset Healthcare University NHS Trust Foundation* [2020] in which Lord Hamblen noted 'there can be little doubt that it was intended to provide guidance as to the proper approach to the common law illegality defence across civil law more generally' (at [76]).

- ^{33.} The judge did, however, find Mrs McHugh to be contributorily negligent. Moreover, he considered that her share of the responsibility was ‘considerably greater’ than that of the defendant and that a ‘just and equitable division of responsibility’ (which would be reflected in the damages awarded) was 75/25 in favour of the defendant.
- ^{34.} See further Sarah Green and Alan Bogg (eds) *Illegality after Patel v Mirza* (Hart 2018).
- ^{35.} As Lord Hamblen explicitly notes: ‘**Patel v Mirza** does not represent “year zero” and that in all future illegality cases it is **Patel** and only **Patel** that is to be considered and applied. That would be to disregard the value of precedent built up in various areas of the law to address particular factual situations giving rise to the illegality defence. Those decisions remain of precedential value unless it can be shown that they are not compatible with the approach set out in **Patel** in the sense that they cannot stand with the reasoning in **Patel** or were wrongly decided in the light of that reasoning. Lord Toulson made it clear in **Patel** that the principles he identified were to be found in the existing case law’ (*Henderson v Dorset Healthcare University NHS Trust Foundation* [2020] at [77]).
- ^{36.} The Supreme Court also declined to overrule *Clunis v Camden & Islington Health Authority* [1998] in which the claimant had killed a man at Finsbury Park Underground station, for which he was later convicted of manslaughter on the grounds of diminished responsibility. The claimant had a long history of mental illness and seriously violent behaviour but had been discharged from hospital to be cared for within the community. He argued that the health authority had been negligent in their assessment of his condition and that, as a result, he had not been prevented from committing the attack. His claim was rejected by the Court of Appeal on the ground of illegality—his claim arose directly out of a criminal offence he himself had committed.
- ^{37.} On the developments post-**Patel**, see Lord Burrows ‘The Illegality Defence after *Patel v Mirza*’, The Professor Jill Poole Memorial Lecture 2022, Aston University, 24 October 2022.
- ^{38.} See further Findlay Stark and Stelios Tofaris ‘Illegality and Insanity in Tort Law’ [2024] Cambridge Law Journal 429.
- ^{39.} Despite suggestions that the defence of contributory *negligence* might apply in cases involving intentional harm (see e.g. *Murphy v Culhane* [1977]; Lord Hope in **Reeves v Commissioner of Police for the Metropolis** [2000]), this was rejected by Lord Rodger in *Standard Chartered Bank v Pakistan National Shipping Corp (No 2)* [2002] (at [43]–[45]) and more recently by Atkins LJ in *Co-operative Group (CWS) v Pritchard* [2011] (at [62]).
- ^{40.} Cane and Goudkamp **n21** 47.
- ^{41.} The occupier’s liability aspects of **Spearman** are discussed in **sections 11.2.1.2 and 11.4**.
- ^{42.} Failure to use a designated crossing (or to do so safely) will not *always* be negligent. See e.g. *Craven v Davies* [2018] in which a man hit by a car doing 86 mph in a 40 mph limit late at night was not found to be contributorily negligent for failing to use a nearby crossing: ‘Much will depend upon the construction of the carriageway, the volume of traffic, the time of day, lighting and visibility’ (at [10]).
- ^{43.} See **section 9.2**.
- ^{44.} Compare *Badger v Ministry of Defence* [2005] in which the claimant’s damages were reduced by 20 per cent to reflect the extent to which his failure to give up smoking had made a material contribution to his lung cancer (which was also caused by the defendants negligently exposing him to asbestos). Though this should now be read in light of more recent case law including *Re P (Deceased)* [2011] in which allegations of contributory negligence were rejected (the deceased had failed to attend follow-up appointments after finding a lump in her breast. Unbeknown to anyone, the letters had been sent to the wrong address).

- ⁴⁵ The wording of the Act may be thought to suggest that the claimant can never be 100 per cent contributorily negligent. This was certainly the view of the Court of Appeal in *Pitts v Hunt* [1991] (although cf Lord Hoffmann in *Reeves*).
- ⁴⁶ ‘Contributory Negligence in the Twenty-First Century: An Empirical Study of First Instance Decisions’ (2016) 79 *Modern Law Review* 575, 613–14.
- ⁴⁷ *ibid* 578–9.
- ⁴⁸ Though cf *Sinclair v Joyner* [2015].
- ⁴⁹ It is now compulsory to wear a seat belt (Road Traffic Act 1988, ss 14 and 15).
- ⁵⁰ Carol Harlow *Understanding Tort Law* (3rd edn Sweet & Maxwell 2005) 38.
- ⁵¹ The Cyclists’ Defence Fund suggests that deductions for contributory negligence for not wearing a helmet in head injury claims are now commonplace in out-of-court settlements (see further: www.cyclistsdefencefund.org.uk <<http://www.cyclistsdefencefund.org.uk>>).
- ⁵² By the time the case was heard by the Supreme Court the claimant was 25 years old.
- ⁵³ See also discussion in *Sabir v Osei-Kwabena* [2015] at [13]–[18].
- ⁵⁴ Cane and Goudkamp **n21** 47.

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